

LAW & MOTION TENTATIVE RULINGS
DEPARTMENT 5
September 17, 2026
8:30 AM/1:30 PM

17. ADRIANE MACE V. GREG MACE

26FL0593

Petitioner filed a Request for Order (RFO) on June 24, 2026, seeking temporary guideline spousal support. Petitioner concurrently filed an Income and Expense Declaration. Petitioner subsequently filed an amended Income and Expense Declaration on June 30, 2026. Petitioner filed a Proof of Service, showing personal service of some, but not all, the required documents on July 7, 2026. Petitioner subsequently filed an amended Proof of Service on August 6, 2026. The amended Proof of Service shows the amended Income and Expense Declaration, as well as all other required documents were personally served on July 7, 2026. Petitioner filed an amended RFO on August 6, 2026. It was mail served on August 7, 2026. In the amended RFO Petitioner is requesting temporary guideline spousal support as well as exclusive use and control of the former marital residence.

Respondent has not filed a Responsive Declaration or an Income and Expense Declaration.

The court has read and considered the filings as outlined above. The court denies the request for exclusive use and control of the former marital residence. Petitioner has failed to set forth any grounds upon which the relief may be granted.

As to the request for temporary guideline spousal support, the court notes Petitioner's amended Income and Expense Declaration is incomplete. As such, the request for temporary guideline spousal support is denied, as the amended Income and Expense declaration does not have the required documents attached and does not set forth Petitioner's income.

Petitioner is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #17: THE COURT DENIES THE REQUEST FOR EXCLUSIVE USE AND CONTROL OF THE FORMER MARITAL RESIDENCE. PETITIONER HAS FAILED TO SET FORTH ANY GROUNDS UPON WHICH THE RELIEF MAY BE GRANTED.

AS TO THE REQUEST FOR TEMPORARY GUIDELINE SPOUSAL SUPPORT, THE COURT NOTES PETITIONER'S AMENDED INCOME AND EXPENSE DECLARATION IS INCOMPLETE. AS SUCH, THE REQUEST FOR TEMPORARY GUIDELINE SPOUSAL SUPPORT IS DENIED, AS THE AMENDED INCOME AND EXPENSE DECLARATION DOES

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NOT HAVE THE REQUIRED DOCUMENTS ATTACHED AND DOES NOT SET FORTH PETITIONER'S INCOME.

PETITIONER IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO* LEWIS V. SUPERIOR COURT, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS BEING REQUESTED MUST BE MADE BY PHONE CALL OR IN PERSON BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07.

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18. NATHANIEL MARTELLE V. DARUIS MARTELLE

24FL0993

Respondent filed a Request for Order (RFO) on July 14, 2026, seeking a change in venue from El Dorado County to Alameda County. Petitioner was served by mail on July 20, 2026. Respondent asserts Alameda County is more convenient due to physical disability as well as a history of domestic violence between the parties.

Petitioner filed a Responsive Declaration on July 28, 2026. It was mail served on Respondent the same day. Petitioner argues El Dorado County is the appropriate venue, as the parties resided in the county together until July of 2026. Petitioner further asserts Respondent may appear remotely, thereby alleviating the need for travel.

Pursuant to Civil Procedure Section 397, the court may, upon a properly noticed motion, transfer any matter where the court designated in the complaint is not the proper court. Cal. Civ. Pro. § 397(a). The burden is on the moving party to establish grounds for a change of venue. *Fontaine v. Sup. Ct.*, 175 Cal. App. 4th 830 (2009). The court has reviewed the filings in this matter and finds El Dorado County is the appropriate venue. Additionally, there is a future hearing already set in El Dorado County, and as such, transfer would not be proper while that hearing is pending. Therefore, Respondent's request is denied.

All prior orders remain in full force and effect. Respondent is directed to prepare the Findings and Orders After Hearing (FOAH); however, this order is effective immediately upon the court's adoption of the tentative ruling and is not conditioned on the preparation of the FOAH.

TENTATIVE RULING #18: RESPONDENT'S REQUEST TO TRANSFER VENUE FROM EL DORADO COUNTY TO ALAMEDA COUNTY IS DENIED AS EL DORADO COUNTY IS THE APPROPRIATE VENUE. ALL PRIOR ORDERS REMAIN IN FULL FORCE AND EFFECT. RESPONDENT IS DIRECTED TO PREPARE THE FINDINGS AND ORDERS AFTER HEARING (FOAH); HOWEVER, THIS ORDER IS EFFECTIVE IMMEDIATELY UPON THE COURT'S ADOPTION OF THE TENTATIVE RULING AND IS NOT CONDITIONED ON THE PREPARATION OF THE FOAH.

NO HEARING ON THIS MATTER WILL BE HELD UNLESS A REQUEST FOR ORAL ARGUMENT IS TRANSMITTED ELECTRONICALLY THROUGH THE COURT'S WEBSITE OR BY PHONE CALL TO THE COURT AT (530) 621-6725 BY 4:00 P.M. ON THE DAY THE TENTATIVE RULING IS ISSUED. CAL. RULE CT. 3.1308; LOCAL RULE 8.05.07; *SEE ALSO LEWIS V. SUPERIOR COURT*, 19 CAL.4TH 1232, 1247 (1999). NOTICE TO ALL PARTIES OF A REQUEST FOR ORAL ARGUMENT AND THE GROUNDS UPON WHICH ARGUMENT IS